

7.	25CV2675	HANSEL LEASING INC., A CALIFORNIA CORPORATION VS. WINE FAMILY CELLARS LLC, A CALIFORNIA LIMITED LIABILITY CO. ET AL
MOTION FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AAND FOR ENTRY OF JUDGMENT		

This case stems from a Complaint for Breach of Contract filed by Plaintiff on October 8, 2025. The Parties thereafter entered into a Stipulation to Dismiss Plaintiff's Complaint, Without Prejudice, and for this Court to Retain Jurisdiction to Enforce the Settlement Agreement Pursuant to CCP § 664.6, which was entered by the Court on November 3, 2025.

On May 13, 2026, Plaintiff filed the following:

1. Notice of Motion and Plaintiff Hansel Leasing, Inc.'s Motion for Order Setting Aside and Vacating its Prior Order of Dismissal, and for Entry of Judgment Pursuant to Stipulation of the Parties; Memorandum of Points and Authorities;
2. Declaration of Jeremy Wachtman in Support of Plaintiff Hansel Leasing, Inc.'s Motion for Order Setting Aside and Vacating its Prior Order of Dismissal, and for Entry of Judgment Pursuant to Stipulation of the Parties;
3. Declaration of Eric Johnson in Support of Motion for Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation of the Parties; and
4. Memorandum of Costs (Summary).

Plaintiff's Motion seeks the following relief: 1)Set aside and vacate the Order of Dismissal entered on November 3, 2025; and 2) Enter judgment against Defendants, Wine Family Cellars LLC, a California Limited Liability Company, Elizabeth Patterson, an Individual, and Paul Haley, and Individual, pursuant to the stipulation of the Parties.

Per the terms of the Settlement Agreement, Defendants were to pay to Plaintiff \$240,819.55 by monthly installments in the amount of \$15,000.00 due on the 22nd day of each month, beginning on November 22, 2025, until the balance was paid in full. Plaintiff asserts Defendants have defaulted this agreement by failing to pay the monthly installment payments. The Declaration of Eric Johnson provides Defendants made a payment of \$2,000.00 on December 9, 2025 and \$13,000.00 on January 19, 2026. Defendants' payment history is included as Exhibit 4. As such, the amount remaining due and owing is \$225,819.55.

In addition, Plaintiff's attorney, Jeremy Wachtman, attests under penalty of perjury Plaintiffs have incurred costs and attorney's fees in the amount of \$1,110.00 to enforce the stipulation.

The relevant provisions of the Settlement Agreement are as follows:

5. Acceleration on Default.

a. If Defendants fails to make any monthly payment within ten (10) calendar days after its due date, Plaintiff may declare the entire unpaid balance of the Settlement Amount immediately due and payable.

b. In such event, Plaintiff may obtain a writ of execution for the full unpaid balance, less any amount previously paid, without further notice to Defendants.

6. Stipulation for Entry of Judgment. At the time of execution of this Agreement by the parties, the parties will also execute a Stipulation for Entry of Judgment, which is incorporated herein by reference. Per the Stipulation for Entry of Judgment, Defendants stipulate to have judgment entered in the Action against them and in favor of Plaintiff as prevailing party on all causes of action alleged in Plaintiff's Complaint, for the sum of Two Hundred Forty Thousand Eight Hundred Dollars and Nineteen Dollars and Fifty-Five Cents (\$240,819.55), plus any additional costs and attorney's fees incurred by Plaintiff to enforce the terms of this Agreement, and less any payments made by Defendants pursuant to Paragraph 1, above.

7. Stipulation to Dismiss the Complaint. At the time of execution of this Agreement by the parties, the parties will also execute a Stipulation to Dismiss Plaintiff's Complaint, without prejudice, and for the Court to Retain Jurisdiction to Enforce the Settlement Agreement pursuant to C.C.P. § 664.6 (the "Stipulation to Dismiss"). Plaintiff will file the stipulation to Dismiss with the Court in the Action. The Stipulation to Dismiss is incorporated herein by reference.

9. In the event Defendants default on their payment obligations pursuant to Paragraphs 1, 2, and 3, above, then Plaintiff shall be entitled, without further notice to Defendants required, to seek judgment in its favor and against Defendants in the Action pursuant to the Stipulation for Entry of Judgment, with continuing jurisdiction to the Court in the Action.

13. California Code of Civil Procedure, Section 664.6. This Agreement shall be subject to and enforceable under California Code of Civil Procedure, Section 664.6. The Parties agree that until this Agreement is satisfied in whole, the Court shall retain jurisdiction over The Parties for all purposes, including for the enforcement of this Agreement, pursuant to California Code of Civil Procedure, Section 664.6. If either party under this agreement requires judicial intervention to enforce this Agreement, that party is entitled to recover from the other reasonable attorneys' fees and costs incurred as a result therefrom. In the event a motion to enforce this Agreement pursuant to California Code of Civil Procedure,

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Section 664.6 is filed, the Parties agree that the party making the motion shall request continued jurisdiction of the Court after judgment is entered.

No response or objection has been filed by Defendants.

Code of Civil Procedure § 664.6 provides that a Court may dismiss the case without prejudice and retain jurisdiction over the parties to enforce a settlement until performance in full of the terms of the settlement. Where a Court dismisses the case without prejudice pursuant to this section, a party may file a motion pertaining to the settlement if the terms are not performed. A Court need not vacate or set aside a prior dismissal before enforcing the settlement based upon a dismissal without prejudice pursuant to § 664.6.

The Court finds that Defendants defaulted on their agreed upon payment schedule per the Stipulation to Dismiss Plaintiff's Complaint, Without Prejudice, and for this Court to Retain Jurisdiction to Enforce the Settlement Agreement Pursuant to CCP § 664.6. Plaintiff's request to enter judgment against Defendants is granted in the amount of \$226,991.55, comprised of the outstanding balance (\$225,881.55), attorney's fees (\$1,050.00), and costs (\$60.00).

TENTATIVE RULING #7:

PLAINTIFF'S REQUEST TO ENTER JUDGMENT AGAINST DEFENDANTS IS GRANTED. JUDGMENT SHALL BE ENTERED AGAINST DEFENDANTS IN THE AMOUNT OF \$226,991.55, COMPRISED OF THE OUTSTANDING BALANCE (\$225,881.55), ATTORNEY'S FEES (\$1,050.00), AND COSTS (\$60.00).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.